

Opinion of the Court

duct. See, *e. g.*, *post*, at 662, 663, n. 2 (citing *The Federalist* No. 69; 4 *Debates on the Constitution*, at 109). The principal dissent's most compelling piece of evidence consists of excerpted statements of Charles Pinckney from an 1800 Senate debate. See *post*, at 663. But those statements reflect only the now-discredited argument that any immunity not expressly mentioned in the Constitution must not exist. See 3 *Records of the Federal Convention of 1787*, pp. 384–385 (M. Farrand ed. 1911). And Pinckney is not exactly a reliable authority on the separation of powers: He went on to state on the same day that “it was wrong to give the nomination of Judges to the President”—an opinion expressly rejected by the Framers. *Id.*, at 385. Given the Framers' desire for an energetic and vigorous President, the principal dissent's view that the Constitution they designed allows all his actions to be subject to prosecution—even the exercise of powers it grants exclusively to him—defies credulity.

Unable to muster any meaningful textual or historical support, the principal dissent suggests that there is an “established understanding” that “former Presidents are answerable to the criminal law for their official acts.” *Post*, at 664. Conspicuously absent is mention of the fact that since the founding, no President has ever faced criminal charges—let alone for his conduct in office. And accordingly no court has ever been faced with the question of a President's immunity from prosecution. All that our Nation's practice establishes on the subject is silence.

Coming up short on reasoning, the dissents repeatedly level variations of the accusation that the Court has rendered the President “above the law.” See, *e. g.*, *post*, at 657, 659, 667, 668, 676, 685 (opinion of SOTOMAYOR, J.); *post*, at 694, 695, 696, 697, 698, 703 (opinion of JACKSON, J.). As before, that “rhetorically chilling” contention is “wholly unjustified.” *Fitzgerald*, 457 U. S., at 758, n. 41. Like everyone else, the President is subject to prosecution in his unofficial capacity. But unlike anyone else, the President is a branch of government, and the